Information Sharing Procedure relating to the London Rogue Landlord and Agent Checker

Between

GREATER LONDON AUTHORITY

The Greater London Authority

and

London Borough of Camden

Camden

INFORMATION SHARING PROCEDURE

INTRODUCTION

1. This is a purpose-specific Information Sharing Procedure made under the Overarching Information Sharing Protocol between the Greater London Authority (GLA) and London Borough of Camden.

2. This Procedure shall be entered into by the specific business units/legal entities within the GLA and London Borough of Camden that are responsible for the purpose specific activity to which the information sharing relates.

EFFECTIVE DATE

3. 1st April 2022

DESIGNATED POINTS OF CONTACT

4. GLA Private Rented Sector Programme Manager (Housing and Land),
GLA Senior Projects Officer (Housing and Land), GLA Projects Officer (Housing and Land).

5. Primary contact: Operations Managers (Enforcement team and Rogue Landlord team)
Secondary contact: Principal EHO (Enforcement team)

PURPOSE AND BENEFITS

Purpose

6. The Mayor has committed to creating a London Rogue Landlord and Agent Checker (RLAC) on the GLA website, containing details of landlords and letting agents who have acted unlawfully and thus undergone enforcement action by participating partners (London boroughs or the London Fire Brigade).

7. A limited range of details will be accessible to the public, and a wider range, which will include historic convictions and other enforcement activity, to participating partners and the GLA. The data sharing will be a one-way transfer of data relating to landlord and letting agent enforcement action from the participating partner to the GLA.

8. There are effectively three tiers of user rights to the RLAC. The first is open to the general public on the GLA website, the second is “read-only” access for participating partners to allow officers to view additional enforcement actions and historic convictions, and the third provides upload and editing rights for a small number of officers from the participating partner organisation.

Benefits

9. The benefits of the RLAC can be outlined according to the following beneficiaries:

9.1. GLA

It will enable the Mayor to send a clear message to landlords and letting agents acting unlawfully across London that successful enforcement actions for relevant offences will result in them being named publicly, making it harder for them to operate 'under the radar'.

9.2. Participating partners

It will support London boroughs and the London Fire Brigade in their enforcement efforts through information sharing and increased awareness amongst renters, landlords and letting agents of the work that boroughs are doing locally to crack down on criminal behaviour.

9.3. General public

It will provide renters with a readily accessible means of checking whether a landlord or agent they are considering renting a property from has faced enforcement action for a housing related offence. It will seek to ensure the private rented housing market operates in a fairer and more transparent way, and that tenants are protected from exploitation by unscrupulous landlords and letting agents. The Report a Rogue Tool sits alongside the RLAC to make reporting a landlord or agent to their borough clearer and easier for tenants.

Reliance on personal information

10. The sharing of limited personal data relating to enforcement action is necessary for the RLAC to achieve its stated aims. Wholly anonymised or pseudonymised data would not support London boroughs in their efforts to crack down on landlords and letting agents acting unlawfully, nor would it enable the public to check whether their landlord or agent has faced enforcement action.

DESCRIPTION OF INFORMATION TO BE SHARED

Categories of information

11. The following categories of data will be shared with the public for landlord entries:

- landlord name (and 'also known as' or associated names, for instance company names)
- home address of landlord – street name and first four digits of postcode only
- address of rental property(ies) associated with the offence
- name of enforcement authority
- criminal conviction offence
- date of conviction
- expiry date of conviction
- court where conviction took place
- value of fine
- conditional discharge offence
- date of conditional discharge
- expiry date of conditional discharge
- court where conditional discharge was awarded

- details of enforcement notices issued by London Fire Brigade
- details of prohibition notices issued by London Fire Brigade
- civil penalty notice offence
- date of civil penalty issue

12. The following categories of data will be shared with the public for letting agents:

- trading name
- ownership details (Ltd co, partnership, sole trader)
- names of principal officers
- registered office address
- other branches
- website
- membership of a trade body
- membership of a redress scheme
- address of rental property associated with the offence (where appropriate)
- name of enforcement authority
- criminal conviction offence
- date of conviction
- expiry date of conviction
- court where conviction took place
- value of fine
- conditional discharge offence
- date of conditional discharge
- expiry date of conditional discharge
- court where condition discharge was awarded
- trading standards civil penalty notice offence
- date of civil penalty issue
- details of expulsion from a redress scheme

13. As well as the information listed above, other enforcement activity taken against landlords and letting agents will be shared on the non-public part of the RLAC, including simple cautions.

14. A list of relevant offences can be found at Annex 2. This list may be subject to change in consultation with all participating partners, for example when legislation changes.

15. Records on the RLAC from the same landlord or letting agent will be linked to demonstrate repeat offending. This link will be displayed on the public and non-public part of the RLAC. Links between two or more records originating from a single partner can be authorised by the partner themselves. Links from two or more different participating partners will be suggested by the RLAC, based on records containing the same (or very similar) names and home address of landlord, or trading name and office address of letting agent. The participating partners will then agree amongst themselves whether they are satisfied that this is the same person or organisation and will then approve or deny the link based on the details of the record. All partners associated with the entries will need to approve the link in order for it go forward to publication.

16. Any data which relates to an identified or identifiable natural person, either on its own or in conjunction with any other data held by either party, constitutes personal data as defined under Article 4(1) of the UK General Data Protection Regulation (UK GDPR),

17. For the purpose of this project, a company acting as a landlord or letting agent will be treated in the same way as an individual.

18. Any data consisting of information as to the commission or alleged commission of any offence by the data subject or any proceedings for any offence committed or alleged to have been committed by the data subject, the disposal of such proceedings or the sentence of any court in such proceedings, constitutes 'data relating to criminal convictions and offences'. The processing of personal data about criminal convictions or offences must have a lawful basis under Article 6 of UK GDPR and either legal authority or official authority for the processing under Article 10 of UK GDPR

Source(s) of the information

19. The data will be sourced from databases or computer systems held by each London borough and the London Fire Brigade.

Frequency

20. Uploads onto the RLAC will take place no longer than ten working days following the enforcement outcome, subject to notification by the borough's legal department.

21. Inaccurate personal data will be corrected no later than five working days after the inaccuracy has been identified.

LEGAL BASIS FOR INFORMATION SHARING

Legal powers to share the information

22. London boroughs have a range of powers (contained in the Housing Acts and other legislation) relating to the attainment of housing standards in the private rented sector (including overcrowding, housing conditions, houses in multiple occupation and the selective licensing of private landlords). Failures by private landlords to attain minimum standards and compliance in these areas can be met by enforcement action by the boroughs and lead to criminal sanctions. A list of relevant offences can be found at Annex 2.

23. Local authorities also have a general power of competence, enabling them to do anything that an individual may do (Localism Act 2011). They also have a power to do anything which is calculated to facilitate, or is conducive or incidental to, the discharge of any of their functions (Local Government Act 1972).

24. Section 17 Crime and Disorder Act 1998 requires the London boroughs to exercise their various functions with due regard to the likely effect of the exercise of those functions on, and the need to do all that it reasonably can to prevent

a) crime and disorder in their area (including anti-social and other behaviour adversely affecting the local environment); and

b) the misuse of drugs, alcohol and other substances in their area; and

c) re-offending in their area.

25. The participation of the London boroughs in the RLAC is consistent with, and incidental to, its various housing powers. Participation in a scheme to bring to the public's attention the action taken to tackle poor standards in the private rented sector and the sanctions applied to landlords and agents acting unlawfully, will serve to raise awareness, act as a deterrent and contribute to the improvement of housing conditions in the private rented sector. It thus demonstrates that regard has been paid to the need to prevent crime, disorder and behaviour adversely affecting the local environment.

26. The RLAC initiative falls within the Mayor's power in section 30 of the Greater London Authority Act 1999 (the 'GLA Act') to act on behalf of the GLA to do anything which he considers will further the promotion of economic and social development in Greater London.

Inclusion of Housing and Planning Act Civil Penalties on the RLAC

27. The Housing and Planning Act ('HPA') 2016 introduced civil penalties of up to £30,000 for certain specified housing offences under the Housing Act 2004 and breaches of banning orders under the HPA. These civil penalties are designed to be an alternative to prosecution.

28. Various boroughs have instructed the GLA to upload HPA civil penalties and trading standards civil penalties of £500 or more to the public tier of the RLAC. These boroughs are listed in the RLAC policies and procedures document which can be found on the Rogue Landlord and Agent Checker website at: www.london.gov.uk/rogue-landlord-checker. The boroughs in question will continue to use their own discretion to decide which cases should be uploaded to the RLAC, in line with their own policies and procedures.

General Data Protection Regulation

Statutory data processing conditions

29. Processing of personal data under this scheme must adhere to the '*principles relating to processing personal data'* under Article 5 of UK GDPR. The first of these principles provides that personal data must be processed lawfully, fairly and in a transparent manner.

30. The processing of personal data is only considered to be lawful if a legal basis under Article 6(1) applies. The processing of data relating to criminal convictions and offences must meet the requirement in Article 10 of UK GDPR.

Article 6 legal basis

31. The following legal basis under Article 6(1) applies to the processing of personal data:

(e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller

32. Section 8(c) of the 2018 Act prescribes that Article 6(1)(e) of UK GDPR – processing of personal data that is necessary for the performance of a task carried out in the public interest or in the exercise of the controller's official authority – includes processing of personal data that is necessary for the exercise of a function conferred on a person by an enactment or rule of law. Section 8(c) of the 2018 Act has been considered to apply by virtue of the legislation detailed in paragraphs 23 to 27 of this procedure.

33. Processing of data is considered to be necessary to help ensure that the private rented housing market operates in a fairer and more transparent way, and that tenants are protected from exploitation by unscrupulous landlords and letting agents.

34. Reliance on Article 6(1)(e) involves a test of necessity which requires a balance to be struck between the objectives of the Checker and the impact on those whose information is disclosed. Subject to the protections afforded by representations procedure in Annex 1, and by committing not to publicise spent convictions, the parties agree that processing will not amount to an unreasonable or unwarranted interference.

Article 10 considerations

35. The processing of data relating to criminal convictions and offences meets the requirement under Article 10 of UK GDPR by virtue of the conditions listed in parts 1, 2 or 3 of Schedule 1 of the 2018 Act. The processing of data relating to criminal convictions and offences for the Checker will comply with paragraph 6(2)(a) of Schedule 1 of the 2018 Act:

- *processing.. is necessary for reasons of substantial public interest… and the exercise of a function conferred on a person by an enactment or rule of law.*

The legislation detailed in paragraphs 23 to 27 of this procedure describes the applicable enactments.

36. The processing of data relating to criminal convictions and offences in this manner is considered to be a matter of substantial public interest for the following reasons

a) London's private rented sector is an important part of the London housing market, and the number of private renters continues to rise. At the same time, there is no easy way for tenants to find out about offences committed by a prospective landlord or agent so that they can make an informed choice. Addressing this information gap in relation to renting property in London is deemed to be matter of public interest.

b) The processing allows London Boroughs and the London Fire Brigade to share information in order to deliver more targeted enforcement activity and to assist in cross-borough enforcement against rogue landlords and letting agents.

c) Given the importance of the private rented sector within London's housing market, the proposed processing contributes to meeting that interest, in a very significant way, not in a marginal or trivial way. There is a rational connection between the processing and the relevant substantial public interest.

d) The processing directly meets the information gap explained above in relation to the London private rented sector.

Law enforcement processing

37. To the extent that the processing of personal data under this scheme is by a competent authority for law enforcement purposes (as defined in section 31 of the 2018 Act), the processing meets the requirements of the six data protection principles in section 34 of the 2018 Act. In relation to the requirements of section 35 of the 2018 Act, the processing is lawful since it is necessary for the performance of a task carried out for law enforcement purposes by a competent authority.

Compatibility with original purpose for which personal data was captured

38. Data regarding enforcement action taken against landlords and agents is collected as part of the Fire Brigade and London boroughs' work to protect tenants and improve conditions in the private rented sector. The RLAC is therefore compatible with this purpose in that its principle objectives are to empower tenants to check their landlord or agent's history and deter unlawful practice in the sector.

Fair processing requirements

39. To support compliance with the first data processing principles under Article 5(1)(a) of UK GDPR and meet the aforementioned conditions under schedules 2 and 3 of the DPA requirements of Articles 13 and 14 of UK GDPR – the provision of 'fair processing' information to data subjects - the GLA will write to the landlord or agent on behalf of London Borough of Camden. prior to his/her data being displayed on the RLAC. The GLA will send this letter within two working days of the entry being added to the RLAC holding area.

40. This will notify the data subject (landlord or letting agent) about the data which will be processed on behalf the borough or Fire Brigade and manner in which it will be processed. The letter will detail the categories of data (from paragraphs 11 – 13) which will be ultimately made accessible to the public, in addition to the data processed on the non-public part of the RLAC.

41. This notification will also set out timescales for the processing of their information and inform the data subject or agent of their right to make representations against the processing of their personal data in the manner described and update any inaccurate or incorrect data.

42. The representation process (see Annex 1) will cover the assessment of any complaints made by the data subject and submissions concerning inaccurate or incorrect data. This will ensure that the rights of the data subject are considered at all times and balanced against the legitimate interests and legal obligations that facilitate the processing of their personal data in this manner.

43. The GLA is required to keep clear and auditable records of the notification and representation processes on behalf of London Borough of Camden. to ensure fair processing of any personal data on behalf of the borough and demonstrate compliance with the appropriate data processing conditions outlined above.

44. The above procedure does not override a data subject's right at any time to exercise their right to rectification (Article 16 of UK GDPR), to erasure (Article 17 of UK GDPR), to restriction of processing (Article 18 of UK GDPR) or to object (Article 21

of UK GDPR). If the GLA is in receipt of any such notice they shall pass this to the borough or Fire Brigade immediately upon receipt.

Data Controller status of the receiving party

45. London Borough of Camden is the controller of all the personal data covered by this Procedure and is responsible for ensuring it is processed fairly and lawfully and in accordance with the principles of UK GDPR and the 2018 Act.

46. On receipt of any personal data under this Procedure, the GLA shall become a processor of that data and will only process that personal data in accordance with this Information Sharing Procedure and the Data Processing Agreement at Annex 3 to this Procedure and for no other purposes. The GLA will at all times ensure that any of its staff with access to the RLAC are trained in the applicable data protection law in force at that time. The GLA will ensure that appropriate technical and organisational measures shall be taken against unauthorised or unlawful processing of personal data and against accidental loss or destruction of or damage to personal or sensitive personal data on the RLAC when exercising its functions as data processor.

47. Although the GLA is registered as a controller in its own right for projects outside of the scope of this agreement, the London Borough of Camden shall remain the controller in respect of the data for this project and continue to process the data for their own purposes.

Human Rights Act 1998

48. Article 8 of the European Convention on Human Rights prescribes that everyone has a right to respect for private and family life, home and correspondence. There shall be no interference by a public authority with the exercise of this right except such as in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic wellbeing of the country, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others.

49. The sharing of personal data under this Procedure will comply with Article 8 as it is:

In pursuit of a legitimate aim: The Mayor of London has a general power to do anything that will promote economic and social development, and environmental improvement in London. The Rogue landlord and agent Checker would be one way of achieving this by seeking to ensure the private rented housing market operates in a fairer and more transparent way, and that tenants are protected from exploitation by unscrupulous landlords and letting agents.

Proportionate: In each case, the information shared will be proportionate for the purpose - the minimum information necessary for the purpose will be transferred and no more.

Appropriate and necessary to a democratic society: Promoting social development, making London's communities a better place to live, and protecting tenants from criminal landlords and letting agents are all activities appropriate to a democratic society. Each individual will have the opportunity to correct any inaccuracy prior to

publication and to explain whether there is a reason why it would not be in the public interest to disclose their convictions (see Annex 1).

Common law Duty of Confidentiality

50. In this case, there are no circumstances that would create an expectation of confidentiality on the part of any individuals whose data is shared between the partners for the agreed purposes.

Crime and Disorder Act 1998

51. Section 17 of the Crime and Disorder Act 1998 has been considered and without prejudice to any other obligation imposed on it, the RLAC is compatible with its various functions with due regard to the likely effect of exercising those functions to do all that it reasonably can to prevent, crime and disorder in its area (including anti-social and other behaviour adversely affecting the local environment).

52. The use of the RLAC will provide valuable intelligence to boroughs in regulating and investigating landlords operating across borough boundaries. Landlords acting unlawfully are directly linked to high levels of anti-social behaviour, poor property management and enviro-crimes in the private rented sector; the RLAC will protect tenants and prospective tenants from these landlords thus preventing further crime and disorder.

MEANS OF TRANSFER

53. Information subject to this sharing agreement will be shared via the RLAC whereby both London Borough of Camden and the GLA will have mutual access to information once entered on to the system, subject to the appropriate access controls.

54. London Borough of Camden will input existing convictions into an excel spreadsheet containing mandatory fields and optional fields. This document will then be uploaded as a CSV file onto the RLAC. Following upload onto the RLAC, the entries will remain in the holding area whilst the GLA notifies the data subject (see Annex 1 for details on the holding area and notification). Subsequent entries will be added using a manual entry online form.

INFORMATION HANDLING ARRANGMENTS

Access to the information shared

55. RLAC users on the non-public tier will have one of three types of access: super-users, viewing and editing, or viewing-only.

a) Super-users will be able to view all published information held on each entry, upload new entries, edit existing entries, make decisions regarding representations, and manage the viewing-only and viewing and editing users for their borough. There will be two super-users per borough.

b) Viewing and editing users will be able to log into the RLAC and view all published information held on each entry. They will be able to add new entries to the RLAC and edit existing entries.

c) Viewing-only users will be able to log into the RLAC and view all published information held on each entry. This user type will be given to most enforcement officers at each borough.

56. At the GLA, the following roles will have super-user access:

- Private Rented Sector Manager, Housing and Land Directorate
- Senior Projects Officer, Housing and Land Directorate
- Project Officer, Housing and Land Directorate

57. At London Borough of Camden the following officers (job roles) will require super-user access:

1. Operations Manager
2. Principal EHO

58. User accounts for London Borough of Camden employees will be created, deleted and managed by the super-user. Each user will have one account, and there will be strictly no sharing of log ins. User accounts of all type must be kept up to date, for example when officers resign the account should be deleted promptly.

Regular or routine onward disclosures by the recipient of the Information

59. The GLA is in ongoing discussions with the Ministry of Housing, Communities and Local Government (MHCLG) about the development of a national criminal landlord database as provided for by the Housing and Planning Act 2016. The MHCLG database will request from boroughs a very similar set of data to that which is to be included in the RLAC.

60. If agreement is secured from MHCLG, London Borough of Camden in principle authorises the GLA to act as an intermediary between the two systems, effectively passing on the data from the London RLAC to the national database, on behalf of the data controller (London Borough of Camden). The GLA will pass on any data which is eligible under the conditions for the database set out in the Housing and Planning Act 2016. Further engagement with all boroughs concerned would need to be undertaken and written agreement obtained prior to any data being transferred.

Unplanned or ad hoc onward disclosures of the Information

61. There will be no unplanned disclosure without prior consent from the relevant data controller. Each participating partner will only be required to notify the original source of the Information where a secondary disclosure has been made to a third party for a purpose unconnected to those provided for in this Information Sharing Procedure.

Retention period(s)

62. Personal data will only be retained for the minimum length of time necessary to achieve the specific aims of each function of the RLAC.

First tier public view

a) Civil penalties of £500 or more will remain publicly viewable for up to 12 months after the enforcement action date. Prior to 1 July 2021, the enforcement action date was taken as the date that the final civil penalty notice was served. Information as to how the enforcement action date is currently calculated may be found by referring to the RLAC policies and procedures document which can be found on the Rogue Landlord and Agent Checker website at: www.london.gov.uk/rogue-landlord-checker.

b) Criminal convictions will remain accessible to the public until the date at which the conviction becomes spent. The vast majority of landlord and letting agent convictions will result in a fine, meaning that the conviction becomes spent after 12 months.

c) In rare cases, a prosecution may result in a custodial sentence, meaning the conviction will last longer than 12 months in line with the provisions of the Legal Aid, Sentencing and Punishment of Offenders Act 2012. Each new entry on the RLAC will be set to a default removal data of 12 months following the date of conviction. It will be possible for the data controller to override this in instances of a custodial sentence.

d) Enforcement and prohibition notices from the London Fire Brigade will have a retention period of three years, mirroring the retention policy for the London Fire Brigade website.

e) The London Borough of Camden can reduce the retention period for their entries if this is considered appropriate.

Second tier borough view

f) Entries will remain accessible to the user groups specified in section 53 for a maximum of ten years, at which point they will be automatically deleted from the RLAC. This retention period is considered to be appropriate because it reflects the period over which the information remains relevant and useful to the boroughs for enforcement purposes. The RLAC will default the deletion date to ten years, but London Borough of Camden is able to override this if they feel a shorter retention period is appropriate. In no circumstances can the retention period exceed the maximum set out in this procedure for each entry.

Secure storage and destruction of the information

63. Further to the arrangements discussed elsewhere in this Information Sharing Procedure, and those specified in the Data Processing Agreement at Annex 3, the user guide developed to cover use of the shared RLAC will detail specific access controls, process or other security measure that will be implemented to protect the information held on the RLAC and the integrity of those systems in accordance with the guidance issued by the Information Commissioner's Office.

64. From April 2022 data will not be transferred outside the United Kingdom at any point and the RLAC will reside on servers based in the UK.

65. Access to the non-public RLAC will be restricted by IP address. Only IP address from participating partners (the GLA, London Fire Brigade and London boroughs) will be given access.

66. All data will be encrypted in transit. In the instance where a spreadsheet is used for transfer, only a CSV file will be used.

67. The RLAC will be penetration tested annually by the GLA, and results will be shared with London Borough of Camden.

68. All passwords for the RLAC will comply with NCSC latest guidelines.

69. All user access and actions on the RLAC will be logged for auditing purposes.

Notification and rectification of errors in the information

70. Information shared by London Borough of Camden is subject to procedures and validations to ensure data quality at the point it is originally input/entered into its own systems.

71. On becoming aware of incorrect data, London Borough of Camden will correct their record on the RLAC as soon as possible and no later than five working days after becoming aware of that error.

72. The GLA, as the receiving authority and data processor, will not amend any personal data provided by London Borough of Camden without explicit instruction from London Borough of Camden, as the data controller.

73. Annex 1 to this procedure details the representations process whereby a landlord or agent can request rectification of any inaccuracies.

Freedom of Information Act 2000 (FoIA)

74. The GLA and London Borough of Camden are both public authorities for the purposes of the FoIA. This means that any information held by either the GLA or London Borough of Camden, is accessible by the public on written request, subject to certain limited exemptions.

75. The GLA and London Borough of Camden shall demonstrate a commitment to openness and transparency regarding information sharing arrangements in accordance with this Procedure and the Overarching Information Sharing Protocol between both parties, subject to any limitations posed by security or confidentiality requirements.

76. In the event that an information access request is received relating to information covered by this procedure, both parties agree to notify one another within five working days following receipt of the request and to consult with the other in line with the Code of Practice as implemented by section 45 of FoIA.

77. For the purposes of information held on the shared RLAC, information is only considered to be "held for the purposes of FoIA" by the party which was responsible for the original record being entered on to the shared RLAC – read-only access to information entered on to the RLAC by another public authority does not constitute "information held" for the purposes of FoIA.

78. Any non-public personal data considered in response to a Freedom of Information Act request should be anonymised and withheld as appropriate under section 40(2) of that Act.

Subject Access Requests (SAR)

79. Article 15 of UK GDPR provides the right to an individual to request access to personal data of which they are the subject. This also includes the right to be told the purposes for which their data is being processed and with whom their data is being shared.

80. London Borough of Camden is the controller of all the personal data covered by this Procedure and is responsible for handling and considering any Subject Access Request made in relation to any personal data for which they are the controller.

81. If the GLA receives a Subject Access Request that relates solely to the personal data held on the RLAC, the GLA will notify the London Borough of Camden (as the controller of that personal data) within five working days of receiving such a request, and promptly notify the data subject making the request that they should re-submit their SAR to London Borough of Camden**.**

82. On receipt of any SAR, London Borough of Camden will notify the GLA within five working days if the request covers any data or information processed by the GLA on behalf of London Borough of Camden which cannot otherwise be accessed via the RLAC.

83. The GLA must provide London Borough of Camden with any information or data which is subject to a SAR that is processed on behalf of London Borough of Camden as soon as possible and no later than ten working days following receipt of an instruction from the London Borough of Camden**.**

84. The GLA will remain a controller in its own right for other information and personal data processed outside of this agreement and the Data Processing Agreement at Annex 3. This agreement will not affect the ability of the GLA to process its own personal data for its own purposes in line with the GLA's obligations and legal requirements.

85. The obligation for the GLA (as a processor) to provide London Borough of Camden (as a controller) with personal data processed on their behalf under the terms of this agreement does not extend to include any other personal data that might be held by the GLA for its own purposes outside of this agreement in a situation where the GLA also holds different personal data on the same data subject for a different purpose.

OTHER CONDITIONS

86. This Procedure does not require adherence to any other conditions. London Borough of Camden and the GLA agree to inform the other party should any new applicable conditions arise.

LOSS OR UNAUTHORISED DISCLOSURES OF INFORMATION

87. Examples of loss or unauthorised disclosure may include:

- Accidental loss or damage to Information
- Damage or loss of information by means of malicious software/hacking
- Deliberate or knowing disclosure of Information to a person not entitled to receive it.

88. The designated points of contact are responsible for notifying the other party in the event of loss or unauthorised disclosures of data within 24 hours of the event.

89. The designated points of contact will also be responsible for notifying other relevant internal departments. In the case of London Borough of Camden, this will be the Data Protection Officer at **DPO@camden.gov.uk** and the GLA it will be the GLA Data Protection Officer.

REVIEW

90. This Information Sharing Procedure will be reviewed as and when changes to information sharing activities arise, or where revised legislation or national guidance necessitates a review or every two years as necessary.

91. Both the GLA and London Borough of Camden reserve the right to review the Procedure at any time in order to respond to any serious incidents related to the data transfer in this project.

VARIATION

92. This procedure shall only be varied or amended with the written agreement of both parties.

TERMINATION OF THIS INFORMATION SHARING PROCEDURE

93. This Procedure may be terminated in the following situations:

a) Immediately in the event of a serious breach of the terms of the Overarching Information Sharing Protocol or of this Procedure; or

b) By one month's notice by either party.

94. Upon termination of the agreement, all records will be destroyed from the RLAC by the GLA and the landlord or agents concerned will be notified. Upon termination, London Borough of Camden**'s** access to the RLAC will be revoked. The GLA remains the owner of the RLAC but has no claim over the data belonging to the former participating partner.

SIGNATORIES

This Procedure is signed on behalf of:

Greater London Authority

Signature: 

Print name: Natalie Daniels

Position: Assistant Director – Housing and Land

Date: 26/01/22

London Borough of Camden

Signature: _____

Print name: _____

Position: _____

Date: _____

Annex 1: Landlord and agent representations process

1. Overview

1.1. As set out above, London boroughs and the London Fire Brigade will submit information to the RLAC on landlords and letting agents. The GLA will offer landlords and letting agents whose details have been submitted the opportunity to make representations prior to them being displayed. It is envisioned this process will work as follows.

2. Data 'holding area'

2.1. London boroughs and the fire brigade will upload records onto the RLAC within ten days of the enforcement outcome. This record will then sit in a 'holding area' on the RLAC – the 'holding area' is a non-public section of the Checker which allows the record to remain unpublished whilst the GLA prints and distributes a letter to the landlord/agent notifying them of their inclusion on the RLAC. While in the holding area, the record will only be available to view by the GLA and the partner which has uploaded it.

3. Representations

3.1. Representations from landlords or letting agents will be received in response to the notification letter preceding publication or once the entry has already been published. Landlords and letting agents could make post-publication representations multiple times if their circumstances change and the following applies to representations on both unpublished and published entries. Representations made after publication will remain on the RLAC while a decision is being reached.

3.2. All representation information, notes and documents will be visible to the GLA and the uploading participating partner only. The public and other participating partners will not be able to see any of this information.

3.3. Within two working days of the entry being added, notification letters will be sent to landlords and letting agents giving them 14 days to make representations prior to publication. Landlords or lettings agents who believe their data should not be displayed will need to include full supporting evidence. For instance, if a landlord claims a conviction has been overturned, they must provide evidence that this is the case. During this 14-day period the entry will remain in the holding area and not be displayed.

3.4. Representations from the landlord or letting agents will generally be received by the GLA via email. The GLA will act as an intermediary and pass on such representations to the relevant controller (London borough or London Fire Brigade) for consideration and decision via the RLAC.

4. Decisions

4.1. From receipt of the representation, the controller has ten working days to investigate the representation. The controller will remain responsible for the decision to remove records from the checker, amend the record or proceed to

publication. Once the controller has reached a decision, they will log this decision against the entry on the RLAC. The GLA will receive notification of this decision. The GLA will then send out a letter notifying the landlord or agent of the decision reached. Following distribution of this letter, the landlord or agent has a further 14 days within which to take further action.

4.2. The record will only go on to be displayed on the public RLAC:

- once 14 days have elapsed following the letter of notification and no representation has been received, or

- once a representation has been received, a decision has been reached by the controller to reject the representation and proceed to publication, and 14 days have elapsed following the GLA notifying the data subject of the outcome of their representation.

4.3. Decisions regarding representations are to be made solely by the controller. Decisions must meet one of the following exceptional criteria:

- Naming on the RLAC carries a risk of personal harm to an individual or their family
- There are national security risks associated with naming an individual
- There are other factors which suggest that it would not be in the public interest to name an individual.

Annex 2 – List of offences

ID	Act	Year	Chapter	Section Number	Section Title From Act
LANDLORD OFFENCES					
1	Housing Act	2004	34	30	Offence of failing to comply with improvement notice
2	Housing Act	2004	34	32	Offence of failing to comply with prohibition order etc.
3	Housing Act	2004	34	72	Offences in relation to licensing of HMOs
4	Housing Act	2004	34	72	Offences in relation to licensing of HMOs
5	Housing Act	2004	34	72	Offences in relation to licensing of HMOs
6	Housing Act	2004	34	95	Offences in relation to licensing of houses under this Part
7	Housing Act	2004	34	95	Offences in relation to licensing of houses under this Part
8	Housing Act	2004	34	139	Service of overcrowding notices
9	Housing Act	2004	34	234	Management regulations in respect of HMOs
10	Housing Act	2004	34	236	Enforcement of powers to obtain information
11	Housing Act	2004	34	238	Information Provisions
12	Housing Act	2004	34	238	Information Provisions
13	Housing Act	2004	34	249A	Financial penalties for certain housing offences in England
14	Prevention of Damage by Pests Act	1949	55	5	Power of local authority to require action
15	Protection from Eviction Act	1977	43	1	Unlawful eviction and harassment of the occupier
16	Protection from Eviction Act	1977	43	2	Restriction on without due process of law
17	Protection from Eviction Act	1977	43	3	Prohibition of eviction without due process of law
18	Fraud Act	2006	35	2	Fraud by false representation
19	Fraud Act	2006	35	3	Fraud by failing to disclose information
20	Fraud Act	2006	35	4	Fraud by abuse of position
21	Environmental Protection Act	1990	43	80	Summary proceedings for statutory nuisances
22	Local Government (Miscellaneous Provisions) Act	1976	57	16	Power of local authorities to obtain particulars of persons intereste
LETTING AGENT OFFENCES					
23	Fraud Act	2006	35	2	Fraud by false representation
24	Fraud Act	2006	35	3	Fraud by failing to disclose information
25	Fraud Act	2006	35	4	Fraud by abuse of position
26	Fraud Act	2006	35	9	Participating in fraudulent business carried on by sole trader

27	Consumer Protection from Unfair Trading Regulations	2008		3	Prohibition of unfair commercial practices
28	Consumer Protection from Unfair Trading Regulations	2008		5	Misleading actions
29	Consumer Protection from Unfair Trading Regulations	2008		6	Misleading omissions
30	Consumer Protection from Unfair Trading Regulations	2008		7	Aggressive practices
31	Consumer Protection from Unfair Trading Regulations	2008		Schedule 1 (1)	Claiming to be a signatory to a code of conduct when the trader is
32	Consumer Protection from Unfair Trading Regulations	2008		Schedule 1 (2)	Displaying a trust mark, quality mark or equivalent without having c
33	Consumer Protection from Unfair Trading Regulations	2008		Schedule 1 (5)	Making an invitation to purchase products at a specified price witho supply, those products or equivalent products at that price for a pe
34	Consumer Protection from Unfair Trading Regulations	2008		Schedule 1 (6)	Making an invitation to purchase products at a specified price and sample of it, with the intention of promoting a different product (bai
35	Consumer Protection from Unfair Trading Regulations	2008		Schedule 1 (7)	Falsely stating that a product will only be available for a very limite opportunity or time to make an informed choice.
36	Consumer Protection from Unfair Trading Regulations	2008		Schedule 1 (9)	Stating or otherwise creating the impression that a product can leg
37	Consumer Protection from Unfair Trading Regulations	2008		Schedule 1(18)	Passing on materially inaccurate information on market conditions conditions.
38	Consumer Protection from Unfair Trading Regulations	2008		Schedule 1 (25)	Conducting personal visits to the consumer's home ignoring the co
39	Consumer Protection from Unfair Trading Regulations	2008		Schedule 1 (26)	Making persistent and unwanted solicitations by telephone, fax, e-m
40	Business Protection from Marketing Regulations	2008		3	Prohibition of advertising which misleads traders
41	Business Protection from Marketing Regulations	2008		4	Comparative advertising
42	The Redress Schemes for Letting Agency Work and Property Management Work Order 2014	2014		3	Requirement to belong to a redress scheme: letting agency work
43	The Redress Schemes for Letting Agency Work and Property Management Work Order 2015	2014		5	Requirement to belong to a redress scheme: property managemen
44	Consumer Rights Act	2015	15	83	Duty to publicise fees etc

45	Consumer Rights Act	2015	15	83	Duty to publicise fees etc
46	Consumer Rights Act	2015	15	83	Duty to publicise fees etc
47	Consumer Rights Act	2015	15	83	Duty to publicise fees etc
48	Companies Act	2006	46	993	Offence of fraudulent trading
49	Companies Act	2006	46	1205	Criminal consequences of failure to make required disclosure
50	The Energy Performance of Buildings Regulations	2012		6	Energy performance certificates on sale and rent
51	The Energy Performance of Buildings Regulations	2013		7	Energy performance certificates on marketing
52	The Energy Performance of Buildings Regulations	2014		11	Statement of energy performance indicator
53	Consumer Protection Act	1987			
54	Furniture and Furnishings (Fire) (Safety) Regulations	1988		15	Prohibition on supply

Annex 3:

UK General Data Protection Regulation (UK GDPR)

Data Controller and Data Processing Agreement

Issued in accordance with Articles 28 and 29

BETWEEN

The Customer

London Borough of Camden
(the Controller)

AND

The Provider

The 'GREATER LONDON AUTHORITY'
(the Processor)

In Support of the
'London Rogue Landlord and Agent Checker'
INFORMATION SHARING PROCEDURE
('the Procedure")

This Contract is made on

1. Background Information

1.1. **London Borough of Camden** and **GLA** have entered into a contract, which includes processing personal data for the purposes specified in the Information Sharing Procedure ("the Procedure") of this document and for the purposes specified in Schedule 1 of this document.

1.2. Because the processes involved in the London Rogue Landlord and Agent Checker (RLAC) involves identifiable personal data, this data is subject to the provision of the UK General Data Protection Regulation (UK GDPR). Under UK GDPR, the **GLA** will be a processor, instructed to process personal data on behalf of **London Borough of Camden.** As the controller for this personal data, **London Borough of Camden** is legally responsible for the processing of this data under UK GDPR.

1.3. Articles 5(1)(f) and 28(1) (amongst other things) of UK GDPR require a controller, when using the services of another organisation to process personal data on their behalf (a processor), to: -

a) choose a processor who can provide sufficient guarantees about their data security measures to protect the personal data they will be processing as part of the contract;

b) take reasonable steps to make sure those security measures are in place and sustained; and

c) document what the processor is allowed to do with the personal data in a written contract. The contract must include:

i) what they can and what they cannot do with the personal data; and

ii) what security measures must be in place to protect the data (they must be equivalent to the level of security imposed on the controller by UK GDPR and the 2018 Act); and

iii) what procedures must be followed if there is a security breach (incident); and

iv) any other arrangements i.e. sub-contracting, termination of contract etc. that needs to be included to secure and control the data.

1.4. This agreement neither overrides nor replaces clauses in the Procedure, but instead is supplementary to it. This agreement is issued in accordance with Article 28 of UK GDPR which requires **London Borough of Camden** as the controller to set out the terms and conditions for the provision of the services provided by the GLA as the processor.

1.5. There is a requirement upon the processor to only process data as instructed by the controller. **London Borough of Camden** as the controller remains legally responsible for the personal data even when it is processed by the GLA as the processor. **London Borough of Camden** must take steps to ensure the personal

data remains protected, the liabilities and risks are appropriately managed, data is processed lawfully and the contract is legally enforceable.

2. Data Controller Responsibilities

2.1. **London Borough of Camden** is the controller of the personal data covered by this agreement and the Procedure and is responsible for ensuring it processed fairly and lawfully and in accordance with the principles of UK GDPR [and the 2018 Act].

2.2. Under UK GDPR, it is the legal duty of the controller to ensure the data protection principles are met in relation to all personal data for which she/he is a controller (unless an exemption applies).

2.3. The controller remains legally responsible for the data processing carried out by the contracted processor.

2.4. The controller shall not instruct the processor to process personal data on his behalf under this contract where the controller himself does not have a secure legal basis under UK GDPR to process that data.

2.5. The six principles relating to processing of personal data are set out in Article 5(1) of UK GDPR. Article 5(1)(f) provides that personal data shall be:

> *Processed in a manner that ensures appropriate security of the personal data, including protection against unauthorised or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organisational measures,*

2.6. Article 28 of UK GPDR sets out the obligations of the controller in respect of engaging a processor to process data on their behalf, while Article 32 stipulates requirements to maintain the security of processed data. These are summarised in section 4 of this agreement.

2.7. **London Borough of Camden,** as the controller, is entitled during the term of this agreement, to require the GLA, as the processor, to provide reasonable assurance that the technical and organisational security measures adequately protect the personal data it is contracted to process. This includes the controller's entitlement to audit the processor's premises, systems, procedures, documents and staff as may be desirable or necessary to ensure compliance with this contract, the service contract and/or with the law.

3. Data Processor Responsibilities

3.1. The GLA is the processor and shall at all times process personal data only as instructed to do so by **London Borough of Camden** as the controller and in accordance with the principles as set out in Article 5(1) of UK GDPR and as defined in the Procedure.

3.2. The GLA, as the processor, shall have in place appropriate technical and organisational security measures that protect the personal data it is contracted to process on behalf of the controller from unauthorised or unlawful processing, accidental loss, destruction, damage or unauthorised access or tampering.

3.3. The GLA shall provide reasonable assurances and guarantees to the controller (as required) that those technical and organisational security measures in place are both appropriate and effective in protecting the processing of personal data.

3.4. The GLA agrees to maintain good information governance standards and practices, by meeting or exceeding the Information Governance Toolkit requirements relevant for their service.

3.5. The processor shall not share the personal data with any third party without the prior written permission of the controller or process personal data in any way or for any purpose that has not been instructed and authorised by the controller.

3.6. The GLA shall not sub-contract a third party to process the controller's personal data without the prior knowledge and written agreement of the controller, and only then having provided all the necessary assurance and guarantees of their adequate organisational and technical security measures.

3.7. The processor shall not transfer or permit the transfer of the personal data on to any territory outside the European Union, and only outside of the UK with the agreement of the controller.

4. Data Security Requirements

4.1. The processor shall:

a) Have regard to the state of technological development and to the cost of implementing any measures, provide a level of security (including appropriate technical and organisational measures) appropriate to the harm that might result from unauthorised or unlawful processing of personal data or the

accidental loss, damage or destruction of personal data and the nature of that personal data

b) Ensure that access to the personal data is limited to those employees who need access to meet the processors obligations under this contract

c) Take reasonable steps to ensure the reliability of their personnel who have access to the personal data, which shall include ensuring that all staff engaged by the Provider understand the confidential nature of the personal data; and

i) have received appropriate training in data protection prior to their use of the data, and

ii) have signed a written undertaking that they understand and will act in accordance with their responsibilities for confidentiality under contract.

4.2. The processor shall ensure: -

a) That it has properly configured access rights for its staff, including a well-defined starters and leavers process to ensure appropriate access control

b) That suitable and effective authentication processes are established and used to protect personal data

c) That the personal data is backed up on a regular basis and that any back up data is subject to vigorous security measures as necessary to protect the availability, integrity and confidentiality of the data

d) That robust and tested business continuity measures are in place to protect the confidentiality, integrity and availability of the Customer’s personal data.

e) Data transferred electronically is encrypted in accordance with national standards

f) Employees are not able to access the data remotely e.g. from home or via their own electronic device or internet portal other than through a secure electronic

network and in accordance with organisational remote working policy. No data shall be stored in such devices.

g) Data that requires disposal is disposed of securely and confidentially in accordance with the secure destruction requirements specified in section 8.

5. Serious information breach incident, incident reporting and duty of candour.

5.1. The processor shall have procedures in place to monitor access and to identify unauthorised and/or unlawful access and use of personal data.

5.2. The processor shall immediately report any information security incident related to the personal data subject to this contract to the controller and undertakes to also fully cooperate with the controller's incident investigation requirements.

5.3. In so far as the controller is responsible for the personal data, it is the controller's responsibility to ensure that the incident is reported in accordance with the **London Borough of Camden's** policies and procedures and for informing the relevant data subjects as appropriate.

6. Process for agreeing variations

6.1. Any variation to the terms of this contract shall be agreed in writing by the parties and in accordance with the contract management conditions set out in the main agreement.

7. Dispute resolution process

7.1. Both parties shall aim to resolve all disputes, differences and questions by means of co-operation and consultation.

8. Secure Destruction

8.1. The processor shall ensure that personal data held in paper form (regardless of whether originally provided by the controller or printed from the processor's IT systems) is destroyed using a cross cut shredder or subcontracted to a confidential waste company that complies with European Standard EN15713.

8.2. The processor shall ensure that electronic storage media used to hold or process **London Borough of Camden's** personal is destroyed or overwritten to current NCSC standards as defined at www.ncsc.gov.uk/guidance

8.3. In the event of any bad or unusable sectors that cannot be overwritten, the processor shall ensure complete and irretrievable destruction of the media itself.

8.4. The processor shall provide the controller with copies of all relevant overwriting verification reports and/or certificates of secure destruction of personal data at the conclusion of the contract.

9. Exit from contract

9.1. The Customer may terminate this agreement with immediate effect by written notice to the processor on or at any time after the occurrence of an event that gives rise to an information security incident or otherwise poses a risk of non-compliance with the data protection principles.

9.2. In order to protect the personal data, The GLA agrees:

a) To store and process personal data securely and destroy it confidentially when it is no longer necessary and instructed by the controller.

b) To return to the controller any personal data held at the end of the contract, ensuring secure transfer, or to makes arrangements for its secure disposal upon the instruction of the controller.

9.3. The GLA will not own, have a right of access to, or be able to in any way use or process any of **London Borough of Camden's** personal data after the termination of this agreement without explicit authorisation from the controller.

10. Liability and Indemnity

10.1. Without affecting its liability for breach of any of its obligations under the service contract, the processor shall indemnify the controller in full for costs, losses, charges or expenses it suffers arising out of the processor's loss of the personal data or unauthorised or unlawful use of it whether arising in negligence or is otherwise a breach of this Agreement and including legal costs, any fine imposed on the controller by the Information Commissioner resulting from an investigation under Article 58 or any other penalty imposed by supervisory authorities and data subjects.

Data Processing Contract between the controller and the processor

On behalf of the Controller:

The Customer .....

Signed 

Name Shaun Flook

Position Head of Housing Needs Group

Date 24 March 2022

(Print name & position of authorised signatory)

On behalf of the Processor:

The Provider .....

Signed .....

Name .....

Position .....

Date .....

(Print name & position of authorised signatory)

Schedule 1

Definitions

See also Articles 4 and 9 of the UK General Data Protection Regulation.

Personal data

> *'any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person;*

Special category personal data

Personal data revealing:

- *racial or ethnic origin,*
- *political opinions,*
- *religious or philosophical beliefs,*
- *trade union membership,*
- *the processing of genetic data,*
- *biometric data*
- *matters of health*
- *a natural person's sex life or sexual orientation*

Data Subject

An individual who is the subject of personal data. In other words, the data subject is the individual whom particular personal data is about.

Controller

The natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its nomination may be provided for by Union or Member State law

See [section 6 of the Data Protection Act 2018].

Processor

A natural or legal person, public authority, agency or other body which processes personal data on behalf of the controller.

Processing

Any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.